

**INBOUND TRAVEL MEDICAL INSURANCE
POLICY DOCUMENT
JULY 2026**

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POLICY AGREEMENT

THIS POLICY is made this _____ between _____, a limited liability company duly registered in the Republic of Kenya of Post Office _____ Nairobi (hereinafter referred to as the Company) which expression shall where the context so admits include its successors and/or assigns and _____ of Post Office Box _____ (hereinafter referred to as the Insured) which expression shall where the context so admits include his or her personal representatives.

WHEREAS

- a. The Company is registered as an insurance company in Kenya and is engaged in the business of providing, among others, inbound travel medical cover within the Republic of Kenya;
- b. The Insured is desirous of obtaining the inbound travel medical cover as herein expressly described and has, by the Application form, applied to the Company for the inbound travel medical cover contained in this Policy; and Brochure;
- c. The Company is ready and willing to offer the Insured the inbound travel medical cover set out in this Agreement and the Insured is agreeable to taking the inbound travel medical cover herein offered subject to the terms and conditions herein set out.

In **WITNESS WHEREOF** this policy has been signed at_____.

For and Behalf of the Company

Name: _____

Signature: _____

Date: _____

For and Behalf of the Insured

Name: _____

Signature: _____

Date: _____

CONSIDERATION

In consideration of the Company providing the Insured with the medical insurance cover as herein set out, the Insured shall pay the Company the agreed premiums as indicated in the Brochure.

COVENANTS

The Insured and the Company hereby agree that the application forms, the Brochure and declarations made to the Company are an integral part of this Policy and all proposals and declarations are expected to be truthful.

INTERPRETATIONS

In this Policy, the following words and expressions have the following meaning:-

Accident	An undesirable or unfortunate sudden, violent and unexpected visible external event occurring during the period the policy is in force and resulting in death of or bodily injury to the Insured. The event should not have been pre-disposed by any pre-existing or known condition that the insured has been treated for in the past.
Acute conditions	A medical condition or an illness or medical problem that begins and progresses rapidly and ends quickly and has a definite cure.
Limit	The maximum benefits to which the insured is entitled to in terms of cover purchased.
Chronic Condition	A chronic condition is a disease, illness or injury which has at least one of the following characteristics; • has no known cure, • likely to recur, • needs indefinite prolonged supervision and treatment by a specialist, • permanent in nature and • caused by changes in the body that cannot be reversed.
Comorbidities	The presence of one or more additional conditions often co-occurring (that is, concomitant or concurrent) with a primary condition. Comorbidity describes the effect of all other conditions an individual patient might have other than the primary condition of interest and can be physiological or psychological. Conditions described as comorbidities are often chronic or long-term conditions. Other names to describe comorbid conditions are coexisting or co-occurring conditions and sometimes also “multimorbidity” or “multiple chronic conditions.”
Commencement Date	The date on which an eligible traveller becomes a Member on or after the Effective Date.
Congenital	A congenital disorder, or congenital disease, is a condition existing at birth and often before birth, regardless of when the condition is diagnosed. This also includes complications arising as a result of congenital disorders or diseases.
Customary and Reasonable Charges	Means charges for medical care made by a service provider which shall be considered by the Company to be customary and reasonable to the extent that they do not exceed the general level of charges being made by other service providers of similar standing in the locality where the charge is incurred when providing like or comparable treatment, services or supplies to individuals of the same sex and of comparable age, for a similar disease or injury. The scales of charges agreed from time to time between the Company and the Panel of Service Providers shall be indicative of such customary and reasonable charges.
Effective/ Inception Date	The arrival date of the insured into Kenya.

Eligible Person/Member/Insured	Any person traveling into Kenya and is not a Kenyan citizen.
Emergency (Treatment)	Means the necessary immediate health care that must be administered to prevent death or worsening of a medical situation.
Epidemic	An epidemic is a swift spread of infectious disease to a large number of persons in a given population within a short period of time as declared by the relevant health authorities e.g. Ministry of Health, World Health Organization.
Exclusion	Categories of treatment, conditions, activities and their related or consequential expenses that are excluded from this Policy from which the company shall not be liable.
Existing Members	These are members who have their cover in force during a specified time period.
General Patient	A Member, who has been admitted to a hospital, is assigned a standard ward bed and is receiving treatment under the care of the hospital's panel of Physicians.
Genetic	Of or relating to genes or heredity.
Hospital	Shall include any of the company's approved medical providers who are licensed to offer care and treatment for the sick and injured. The term Hospital shall not be construed to include rest home convalescent home for the aged, a place for custodial care.
In Force	The Policy is in effect for the medical benefits specified in the Schedule.
Injury	Bodily injury caused by an accident to a member while the policy is in force. This includes all injuries resulting from such accident and all complications arising as a result of the injury.
Inpatient	A Member who has been admitted to a hospital, is assigned a bed and given a Diagnostic test or receives treatment for a disease, disorder or injury.
Inpatient Treatment	Treatment which requires admission in a hospital or day care surgery.
Insurance	A promise of compensation for specific potential future losses in exchange for a consideration of premium payment.
Limit of Indemnity	This is the Company's liability as limited in events and amount to the limits specified in the Schedule applying to each item or type of cover provided. The overall maximum limit stated thereon is the maximum amount recoverable under this policy as a whole by any Member during any one period of insurance and in total in respect of any one covered claim or event.
Local Ambulance Services	Ambulance services for transportation of a sick Member for treatment in a designated hospital from an area where facilities for adequate care do not exist. The service is subject to the limit as specified in the Schedule and subject to preauthorization by the insurer based on medical necessity
Medical Expenses	The cost of the medical, surgical or other remedial attention, treatment or appliances for the sole purpose of curing or relieving of disease and/or illness or injury and which are recommended, approved and certified as necessary and reasonable by a Medical Practitioner and all hospital and nursing home charges in connection therewith subject to the Overall Limit and the Exclusions.

Medical Practitioner	A Practitioner who holds a professional qualification in medicine or surgery from a duly recognized university and is not disqualified from practice by any law, order or regulation of the country in which he is practicing, having been licensed by the relevant licensing Authority	
Members	These are Eligible Persons whose Proposals have been accepted by the Company.	
Newly Diagnosed Chronic Condition	Any chronic condition or symptoms for which treatment or medication or advice or diagnosis has not been sought or received and was not foreseeable prior to the Commencement Date for the member concerned.	
Original Cause/Proximate Cause	The cause having the most significant impact in bringing about the loss when two or more independent perils operate at the same time (i.e., concurrently) to produce a loss.	
Out-patient	A patient who does not require hospitalization to undergo medical treatment but instead receives treatment elsewhere, e.g. in a doctor's office, clinic or the outpatient facility in a hospital.	
Overall Cover Limit	The total amount of benefit under this policy for which the insured has taken cover as specified in the policy schedule.	
Palliative care	Palliative care is an approach that improves the quality of life of patients and their families facing the problems associated with life-threatening illness, through the prevention and relief of suffering by means of early identification and impeccable assessment and treatment of pain and other problems, physical, psychosocial and spiritual.	
Pandemic	A pandemic is the worldwide spread of a disease upon declaration by the relevant health authorities e.g. Ministry of Health, World Health Organization.	
Period of Insurance	This is tied to the duration of cover specified when purchasing the same.	
Panel of service Providers	The list of Hospitals, Pharmacies, Clinics, Physicians and other service providers approved by the Company from whom Members may seek services on credit or for whom the Company will make reimbursements.	
Physician	Means a properly qualified medical practitioner licensed by the competent authorities of the country in which treatment is provided and who in rendering such treatment is practicing within the scope of his or her licensing and training.	
Pre-Existing Condition	Medical	A pre-existing condition is a medical condition; which can be proven that a member had, or was known by the member to exist prior to the commencement date or prior to the renewal of cover, whether or not treatment or advice or diagnosis was sought and received. It is any condition diagnosed before expiry of 90 days from the commencement date.
Pre-authorisation	Pre-authorization is a written approval that an insured member may need to access certain medical services according to the scope of their medical cover. It is a promise to cover the medical case as per the medical report received by the insurer.	
Prematurity	Conditions related to the birth of a baby at an estimated gestational age of less than	

38 weeks.

Cover Proposal

Any signed proposal and declaration in the form set out in the Schedule of Benefits hereto and any information supplied by or on behalf of the Insured in addition thereto or in substitution thereof.

Sickness

Disease to a member which first manifests itself while the Policy is in force and forms the basis of a claim. This includes all complications arising as a result of the sickness/ disease and all related conditions and recurrences thereof.

Out-patient Cover

Necessary medical treatment provided to a member who is not a registered in-patient at a hospital and defined as:

(i) General Out-patient Services

Outpatient services provided at the preferred provider panel by any registered and licensed clinician up to and including a medical officer (or on the order of a Physician who is licensed as a general practitioner).

(ii) Out-patient Prescription Drugs

Drugs and medicines, the use of which is restricted to the order of a licensed clinician up to and including a medical officer (Physician and prescribed for use by the Member as an outpatient).

(iii) Benefits Package

Illnesses, accidental injuries and conditions to the limits specified in the Schedule of Benefits.

(iv) Consultation

Provided by any registered and licensed Clinician up to and including a Medical Officer and Specialist Referrals' within the scheme.

(v) Diagnostics

Laboratory investigations of any nature available within Kenya, subject to the cover terms

(vi) Imaging

All imaging available in Kenya, subject to the cover terms.

(vii) Therapeutics

Generic Protocol Based Psycho-Social Counseling, Nutritional Counseling, Physiotherapy.

Cover for outpatient services are subject to the amount specified in the

Schedule of benefits.

Sanctions	General trade, economic or financial sanctions or trade embargoes imposed, administered or enforced by Sanctioning Bodies/Competent Authorities against countries, persons, groups and/or legal entities.
Terrorism	the use of organized intimidation, or extreme fear to coerce a government or community.
Terrorist Financing	(i) the provision of or making available such financial or other related services to a terrorist, group or entity which is concerned with terrorist activity; or (ii) entering into or facilitating, directly or indirectly, any transaction related to dealing in property owned or controlled by on behalf of any terrorist or any entity owned or controlled by a terrorist.
Sanctioning Body/Competent Authority	Any one or a combination of the Office of Foreign Assets Control of the Department of Treasury of the United States of America, the United Nations Security Council, the European Union, Her Majesty's Treasury, the French Ministry of Economics, Finances and Industry and any other Sanctioning Body/Competent Authority as internationally recognized or as designated by The Company from time to time.
Sequelae	A result or condition that follows from a disease or illness. Any abnormal bodily condition or disease related to or arising from a pre-existing disease. Any complication or a secondary result of a disease, an aftereffect of a disease, condition, or injury.

SCOPE OF COVER

Medical Expenses

In-patient Cover

1) Hospital treatment and services:

The Company will indemnify the Insured subject to the Overall Limit in respect of the Medical Expenses necessarily incurred as the direct result of an Insured falling ill or sustaining accidental bodily injury during the Period of Insurance. The insurance is subject to the terms of this Policy.

Cover includes nursing care, diagnostic, laboratory or other medically necessary facilities and services, physician's, surgeon's, anaesthetist's or physiotherapist's fees, operating theatre charges, intensive care unit charges, high dependency unit, cardiac care unit, specialist consultations or visits and all drugs, dressings or medications prescribed by treating physician for in-hospital use. The cost of non-medical goods or services including such items as telephone, newspaper or accommodation for the Member's family is excluded.

2) Day Care Surgery or treatment:

This covers when an Insured Person is admitted to a Hospital for a procedure that cannot be performed in the doctor's office or on an outpatient basis and uses a Hospital Bed but does not stay overnight.

3) Chronic Conditions and Pre-existing Conditions only for emergency

Chronic conditions are covered to the limit of inpatient indicated in the product benefit schedule subject to the terms indicated in the policy summary or endorsement thereto.

Chronic conditions under this policy include but are not limited to, the chronic conditions themselves and/or their complications, sequelae or associated comorbidities.

4) Pre-admission evaluation & Diagnostic Services:

Covered services include laboratory, radiology or other necessary medical diagnostic procedures ordered by a Physician and which results in the Member being admitted (on the same day the tests are done) as a registered patient to a Hospital for treatment of the specific medical condition diagnosed, provided that such medical condition is covered.

Post Hospitalization

Outpatient follow up including consultation, drugs, physiotherapy and other treatment that is solely related to the condition that the member was hospitalised for.

Covid-19 Treatment

Treatment for Covid-19 moderate and critical cases based on the World Health Organization disease severity classification shall be covered up to the limits specified in the policy schedule/underwriting summary.

Out-patient Cover

This shall be medically necessary and eligible medical treatment provided to a Member who is not a registered in-patient at a hospital and defined as:

Acute illnesses and accidental injuries.
Emergency Chronic and Pre-existing illnesses Cover
Consultation, diagnosis and treatment in both general and specialized clinics

Emergency Medical Transportation/Evacuation

Evacuation for the patient from the site of the event to the nearest hospital or according to medical need approved by a doctor of the insurer

Ambulance services for transportation of a sick Member for eligible inpatient treatment from an area where facilities for adequate care do not exist to the nearest suitable Hospital or licensed medical facility.

Prescribed Medicines

Drugs and medicines, the use of which is restricted to the order of a licensed clinician.

Mental Illness

Treatment for mental health related conditions and ailments
Psycho-Social Counselling
Alcohol, Drug and Substance Abuse

Repatriation of Mortal Remains

Refers to the benefit that covers the cost of returning a deceased person's body back to their home country, where the policy will cover the expenses of transporting the remains from Kenya in the event of death while traveling abroad.

LIMITS OF COVER

Benefit	Limit of Cover (in USD)
Medical Expenses	20,000
Emergency Medical Transportation/Evacuation	25,000
Prescribed Medicines	300
Mental Illness	1,000
Repatriation of Mortal Remains	5,000

EXCLUSIONS

Notwithstanding anything to the contrary contained in this Policy, the Company shall not be liable in respect of medical expenses for a person visiting the country purely for purposes of seeking medical care treatment that was foreseeable at the time of travel. Further, the company shall not be liable for medical costs associated with vaccinations, medical check-ups, family planning, supplements, weight loss treatment, cosmetic or plastic surgery, and costs of donating an organ or incurred while locating a replacement organ.

PROVISIONS AND GENERAL CONDITIONS

Notwithstanding anything to the contrary contained in this Policy, the medical insurance cover given by the Company under this Policy is subject to the following General Conditions:

1. **Inception of Insurance**

Insurance cover shall only be in force or effective once the Insured has submitted a duly filled and signed Proposal, has provided the required Insured's details and paid the full premium. The Company shall thereafter accept inception of cover.

2. **Pre-Authorization Review, Notification and Submission of Claims**

In the event of any illness or accident giving rise to a claim under this Policy the Member shall notify The Company within 48 hours prior to a scheduled admission or 24 hours after emergency admission and shall submit a duly completed claim form within Thirty (30) days of commencement of illness or date of accident or date of discharge. The Member shall obtain and furnish The Company with all original bills, receipts and other documents upon which a claim is based and shall also give additional information and assistance as the Company may require. All claims shall be supported by original invoices and benefits will be paid subject to provisions of this Policy once all the verifications have been done by the Company.

3. **Premium**

The Premium payable to the Company, inclusive of applicable taxes, shall be paid by the Insured on the Arrival into Kenya and shall cover the period of insurance, failure to which cover shall not commence.

4. All certificates of information and evidence required by the Company at the time of accessing benefits shall be furnished free of expense to and in the form prescribed by the Company. The Insured shall, when required by the Company, submit himself to be examined by the Medical Practitioner or other officer of the Company and shall at all times send by email to the Company's premises within (7) seven days after receipt of demand all such further evidence and information by way of certificates, declarations or otherwise as may be from time to time required by the Company in order to ascertain and prove the nature and extent of the injuries and, in case of death, there must be delivered to the Company a certificate from the Medical Practitioner who attended to the Insured stating as fully as possible the nature, extent and duration of the injuries, the cause of death and all such other information and evidence as the Company may require or consider necessary to satisfy itself of its liability and of the identity of the Insured and of the title of the claimant. In case of the

death of the Insured, the Company shall have the right to have a post mortem examination made at its own expense. The Insured or the Insured's personal representatives shall have no right to claim from or sue the Company beyond the limits of this cover. If the Insured comprises more than one party having an interest in the Insured, the Overall Limit of Indemnity applicable shall represent the total amount payable in respect of the Insured from the Inbound Travel Medical Cover.

5. The Company shall be entitled at any time in the Company's or the Insured's name to take proceedings at its own expense and for its own benefit to secure reimbursement from any third party in respect of anything covered by this Policy. The Insured shall give all such assistance as the Company may require.
 - i. No sum payable under this Policy shall carry interest.
 - ii. The Company shall not be bound to accept or be affected by any notice of any Trust, Charge, Lien, Assignment or dealing with or related to this Policy.

6. Case Management

The medical treatment of the Insured shall be managed according to the following regulations:

- i. The service must be medically necessary and delivered in a Hospital.
- ii. The service must have been authorized in terms of the authorization procedure mentioned in sub-clause above
- iii. Only services delivered within the allocated length of stay are covered.
- iv. The service, medication or supplies that the Insured is charged for must relate to the reason for admission. Should the Insured undergo any further treatment that is deemed by the Company to be medically unnecessary the Company shall avoid all liability for such costs incurred.

Appointed service providers may vary without notice where the service provider shall arbitrarily suspend the services without giving The Company due notice. However, where The Company is duly notified of such suspension, they shall promptly inform the clients of such suspension and advise on alternative service providers.

7. Recovery of Expense Already Paid:

If after submission of documents required to substantiate a claim it is discovered that the Company should not have made any payment under this option, the claim is an exceeded claim or the benefits were incurred outside the policy, the claim will be deemed invalidated and the Insured's legal personal representative or any beneficiary named therein shall forthwith reimburse the whole amount paid to the Company.

8. Local Evacuation

The Company will indemnify the Insured in respect of Medical Expenses incurred for the use of a road or air ambulance by the Insured from the point of accident or illness to the Hospital provided that the evacuation leads to in-patient hospitalization. The evacuation must be for life threatening conditions and must be preauthorized and approved by the insurer. The entitlement of either road or air evacuation benefit is subject to overall cover limit

9. Access to Emergency Services

Emergency services that includes evacuations, emergency transfers from one hospital to the other or from any other site can be accessed upon preauthorisation by the client from the appointed rescue/emergency service providers.

10. Cash and carry

In Pursuant to the amendment of Section 156 Subsection (2) of the Insurance Act Cap 487, The Insured is required to pay their insurance premium on or before the medical cover commencement date. The Company shall only assume risk upon confirmation of full premium payment.

11. Fraudulent/Unfounded Claims

If any claim under this policy is in any respect fraudulent, false, intentionally exaggerated or unfounded or if any false declaration or statement shall be made in support thereof then, all cover in respect of the Member(s) shall be cancelled with immediate effect without refund of premiums, and the Member(s) shall no longer be eligible for cover for any future periods. The Company reserves the right to institute legal charges and/or proceedings against the Member(s).

12. Cover period

The company shall assume risk from the date of arrival into Kenya and the medical cover shall terminate as per the policy.

13. Taxes

The Company reserves the right to reflect any changes in insurance premium or other government levies as may be imposed on us.

14. Confidentiality

The insurer agrees that they will not use or disclose any identifiable patient information (whether received or created before or after the date of this agreement) except for the purposes necessary to perform services for providing insurance cover of the insured or with the prior consent of the insured.

The insurer represents that it has safeguards in place, equal or superior to protect the security of patient information. The insurer agrees to securely dispose of identifiable patient information once it is no longer required for the purposes of insurance and after any document holding periods as covered by the insurance act are served.

Exceptions to Confidentiality:

- a) The undertakings and duties and obligations with regard to Confidential Information in this clause do not apply where:
 - i) The Insurer can demonstrate that the information is already in the public domain or has become available to the public through no breach by themselves or agents or assigns;
 - ii) was rightfully in its possession, prior to receipt from the other Party, as proven by the

first mentioned Party's written records, without an infringement of an obligation or duty of Confidentiality;

- iii) In the event that the Insurer is required by Law, regulation, or Court Order to disclose any Confidential Information about the client, the Insurer shall restrict its disclosure to only the portion of Confidential Information required. They shall exercise all reasonable efforts to obtain reliable assurance that confidential treatment will be accorded to the Confidential Information so disclosed.

15. Indemnity

In consideration of the Company having agreed to arrange for credit facilities with Medical Service Providers, the client will hold the Company fully indemnified for any medical expenses outside the scope of cover.

Compliance Clauses

1. Sanctions Clause

Each party warrants and undertakes that:

- a. as at the Date of this Agreement, it is not subject to Sanctions;
for the duration of this Agreement, each party warrants that they shall not engage in any action which would result the other party becoming subject to Sanctions; and will not use, directly or indirectly, the activities of any person or entity which is subject to any Sanctions or in a country which is subject to any Sanctions;
- b. it is not involved in any illegal activities, Terrorism and Terrorism Financing and will indemnify and hold the other party harmless against any actions, proceedings, claims and/or demands that may be brought against them in connection with or arising out of the seizure, blocking or withholding of any funds as a result of Sanctions;

In the event of a breach of the provisions of this clause notwithstanding any provision to the contrary, either party shall be entitled to terminate this Agreement immediately on written notice to the other party without prejudice to any other rights in terms of this Agreement or otherwise in law.

2. Anti-Bribery.

Each Party agrees that it has not and shall not, either directly or indirectly, engage in the following conduct: bribery or make any improper payment of any monies or financial or other advantage, anything of value, or any other perceived benefit to obtain or retain a business advantage in violation of any Anti-bribery Laws and further, each Party agrees that it shall not take any action that would cause the other Party to be in violation of such Anti-bribery Laws.

16. Arbitration

- a) Any dispute on matters involving a medical decision including reasonable and customary

medical services and charges which cannot be settled by the parties may be referred to the arbitration of three qualified doctors to be agreed upon by the parties and in default of such agreement both to be nominated by the Medical Practitioners and Dentists Board.

- b) If the dispute is not settled between the parties, the parties shall refer the matter to the Insurance Regulatory Authority for resolution and if the dispute remains unresolved, to a court of competent resolution for final settlement.
- c) Any other dispute between the parties, not being a medical matter, with reference to or in connection with any part of the contract regarding the construction, meaning or effect of any provision hereof, the duties of the parties hereunder which cannot be settled by the parties may be referred to a single arbitrator to be agreed upon between the parties and in default of agreement, on to be nominated by the Chartered Institute of Arbitrators of Kenya, with each party bearing its own costs of Arbitrators.
- d) The place of Arbitration shall be Nairobi and the language of Arbitration shall be English.
- e) The arbitral award shall be final and binding to the parties to the extent applicable by law.

17. Governing Law, Language and Currency

This policy document shall be governed by and construed in accordance with the Laws of Kenya in the English Language. Any provisions, coverage, or obligations that are deemed unlawful, invalid, or unenforceable under the Kenyan laws shall be excluded from this contract and shall not be covered or enforceable.

The Premiums and Benefits applicable in the Inbound Travel Medical Cover are quoted in USD.

This insurance contract is made and accepted subject to all the provisions, conditions and warranties set forth herein and in any forms or endorsements attached hereto all of which are to be considered as incorporated herein, and any provisions or conditions appearing in any forms or endorsements attached hereto which alter the insurance provisions stated above shall supersede such insurance provisions in so far as they are inconsistent therewith.